

		from a Delaware corporation to a California corporation. (Owens Decl., ¶¶ 3-8.) Plaintiff expects the conversion to be finalized by or around the time of the July 23, 2026 hearing. (Owens Decl., ¶¶ 9-10.) Defendants argue that waiting until the eve of the hearing to re-domicile in California is a flagrant attempt to moot the motion and subvert the posting of a bond. However, Defendants do not cite any legal authority that prohibits a foreign corporation from converting to a California corporation in response to a motion to post a bond. The Court finds no reason to ignore Plaintiff’s imminent conversion. Doing so would not further the purpose of the statute and would be a waste of judicial resources. Plaintiff is ORDERED to file proof of the finalized conversion from a Delaware corporation to a California corporation no later than five court days before the hearing.
14	24-01431161 <i>Zamudio vs. Cool Breeze Trucking Inc</i>	1) Demurrer to Amended Complaint 2) Motion for Discovery 3) Motion to Compel Deposition (Oral or Written) 4) Motion to Compel Deposition (Oral or Written) <u>Demurrer</u> Defendant Cool Breeze Trucking, Inc.’s Demurrer is OVERRULED. Defendant’s demurrer is procedurally defective. It fails to contain a notice. Thus, it violations Code Civil Procedure section 1010 and California Rules of Court rule 3.1320. <u>Motion to Compel – Covarrubias</u> Plaintiff Jorge Zamudio’s Motion to Compel Deposition Answers of Defendant Diana Covarrubias is GRANTED. The parties are ordered to meet and confer to select a date within 60 days of this order to complete the deposition. Defendant is ordered to pay \$2,851.31 in sanctions within 20 days of this order. “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480(a).) Here, Covarrubias failed to answer questions by terminating her deposition before Plaintiff’s counsel had finished asking questions. Thus, Covarrubias is compelled to attend a second deposition session to answer counsel’s remaining questions. Sanctions are mandatory for failing to answer questions at a deposition. (Code Civ. Proc., § 2025.480(j).)

Motion to Compel – Vasquez

Plaintiff Jorge Zamudio’s Motion to Compel the Deposition of Defendant Alex Vasquez is GRANTED.

The parties are ordered to meet and confer to select a date within 60 days of this order to complete the deposition.

Defendant is ordered to pay \$1,730 in sanctions within 20 days of this order.

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (Code Civ. Proc., § 2025.450.) Here, Vasquez failed to appear for his deposition without serving a valid objection. Thus, Vasquez is compelled to attend his deposition.

Sanctions are mandatory for failing to appear for a deposition. (Code Civ. Proc., § 2025.450(g)(1).)

Motion to Permit Financial Discovery

Plaintiff Jorge Zamudio’s Motion to Permit Financial Discovery is DENIED.

“A trial court considering a motion to permit discovery of a defendant's financial condition must weigh the evidence submitted in support of and in opposition to the motion and determine whether the plaintiff has established a “substantial probability.’ ” (*Kerner v. Superior Court* (2012) 206 Cal.App.4th 84, 120.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”

Plaintiff’s evidence of malice or oppression is insufficient to support a punitive damages award. Plaintiff bases his punitive damages request on “(1) Defendants knowingly re-labeled CFRA-excused absences as ‘unexcused,’ then discharged Plaintiff one day after he requested a short

		extension—because he requested that extension [sic]; (2) Covarrubias confessed no knowledge of CFRA, no research, and no review of the mandatory poster [sic]; (3) ownership knew of Plaintiff’s complaints, the PAGA notice, and his contemplation of legal action; they called him a ‘backstabber,’ stripped promised benefits, and then fired him [sic]; and (4) the owners made and executed the decision; Covarrubias authored the termination letter; she is responsible for legal compliance.” (Motion, p. 12.) However, a review of the authorities finding sufficient facts to base a punitive damages award in the employment context reveals a higher level of animus than standard retaliation as alleged here. In <i>Commodore Home Systems, Inc. v. Superior Court</i> (1982) 32 Cal.3d 211 and <i>Alcorn v. Anbro Engineering, Inc.</i> (1970) 2 Cal.3d 493, the court ruled racial discrimination was sufficient and in <i>Tameny v. Atlantic Richfield Co.</i> (1980) 27 Cal.3d 167, the court ruled discharge for refusal to participate in a gas price fixing scheme were sufficient. Plaintiff’s allegations are not analogous and fail to support malice or oppression within the meaning of Section 3294. Thus, Plaintiff’s Motion is denied.
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